

## **AGREEMENT**

**THIS AGREEMENT** is made on this  day  2016  
at   
 (hereinafter referred to as "**Agreement**")

## **BY AND BETWEEN**

**Result Services Pvt. Ltd.**, a company registered under the provisions of the Companies Act 1956 and presently operating under the provisions of (Indian) Companies Act 2013, having its registered office at 204-206, Tolstoy House, 15 Tolstoy Marg, New Delhi and the Principal operating office at 8, Balajji Estate, Guru Ravidass Marg, Kalkaji, New Delhi 110019 duly represented by its authorized signatory Mr. Punit Kapoor, Sr. Vice President & General Manager (hereinafter referred to as "**RSPL**", which expression shall unless it is repugnant to the context or meaning thereof include its affiliates, representatives, successors and permitted assigns) of the ONE PART;

**AND**

[ ] having its  
registered office at

[ ]

[ ]

and operating office at

[ ]

[ ] duly

represented by

[ ]

(hereinafter referred to as “**Authorised Dealer/ASC**” which expression shall unless it is repugnant to the context or meaning thereof include its affiliates, representatives, successors and permitted assigns) of the OTHER PART;

The expressions “**Agency**” and “**Authorised Dealer/ASC**” shall hereinafter be collectively referred to as “**Parties**” and individually as “**Party**”.

**WHEREAS:**

- A.** The Authorised Dealer/ASC is the authorised network partner of **M/s. Hero MotoCorp Ltd. (“HMC”)** entitled on a non-exclusive basis to operate and manage the dealership/service centre/workshops for the purpose of carrying out the activity of sales, distribution, necessary repair work, servicing and maintenance of two wheelers/bikes manufactured by HMC (hereinafter collectively referred to as “**Vehicles**”) within the territory of India, subject to such other terms and conditions as set forth therein (hereinafter to be collectively referred as “**Authorised Activities**”).
- B.** RSPL is a leading customer relationship management company specialized in digital and direct marketing services for its clients across various locations in India.
- C.** In accordance with the understanding finalized between RSPL and HMC, RSPL will provide marketing support to the HMCL dealer Network to manage HMCL’s Joyride Program at their respective dealerships (hereinafter referred to as “AMC Program or “Joyride”) under which annual maintenance facilities such as servicing, maintenance and repair of bikes/ two wheelers would be carried out by HMC dealer network across the territory of India. Under this AMC Program the customer of HMC will be entitled to get certain benefits such as servicing, labour and oil for repair and maintenance of Vehicles throughout the dealership network of HMC

including at the location of the Authorised Dealer/ ASC as defined and controlled by HMC.

- D. For purposes aforesaid, the Parties have agreed to enter into this Agreement, whereby the RSPL shall carry out such requisite activities and responsibilities as set forth under **Annexure “I”** hereto (hereinafter collectively referred to as “**RSPL Activities**”) in order to ensure successful implementation of (including but not limited to the documentation assistance) the AMC Program initiated under the brand/ trade name of HMC on such terms and conditions as set forth herein.

## **NOW, THEREFORE, THIS AGREEMENT WITNESSETH AND PARTIES:**

### **1. DEFINITIONS:**

Unless the context otherwise requires the following terms shall have the meaning assigned to hereunder when used in this Agreement:-

**1.1. RSPL Employee(s)** shall mean and include any supervisor, workmen or /any other persons engaged /appointed by the RSPL or any contractor or sub – contractor of the RSPL to provide Services under this Agreement.

**1.2. RSPL Persons** shall include personnel of the RSPL including RSPL Employees.

**1.3. AMC Material** shall mean and include collectively Magnetic Swipe cards/ envelope/ leaflet booklet and/or any other related paper work etc. (in relation to the AMC Program) created/developed and arranged to be delivered by the RSPL to the Authorised Dealer/ASC in mutual agreement with RSPL and HMC.

**1.4. Annual Maintenance Contract (AMC)** shall mean the contract documentation wherein the terms/ conditions and other details of cost, servicing and maintenance etc. are provided for reference to the Customers (defined below) by the HMC authorised dealer/ASC only.

### **2. SCOPE OF WORK:**

**2.1.** As per understanding finalised between the parties, RSPL shall be responsible for marketing services that include creating/making AMC material, documentation management, support/assistance as required for the dispatch of AMC Material after advance payment by HMC dealer network for the operations and management of AMC Program (more specifically described under **Annexure I** hereto) (“**RSPL Activities**”), on the terms and conditions as set forth under this Agreement. The RSPL

Activities shall be carried out as per the expected service levels and deliverables prescribed by the RSPL (on instructions of HMC) pursuant to this Agreement.

2.1.1. **Annexure I** is subject to amendments or modifications from time to time, as regards the scope of work and all the other operational requirements related to AMC Programme. All Annexure(s) to this Agreement, as amended or modified from time to time, are and will be an integral part of this Agreement, unless there is express and specific indication to the contrary. The Authorised Dealer/ ASC shall act as an end-point for the AMC Program including extending benefits and facilities to the customers such as servicing, repair and maintenance of Vehicles and Parts.

2.2. For purposes herein, it is being clarified that the role of HMC in the AMC Program is limited only to the extent of authorising the use/display of its intellectual property rights (including use of trademark/ logo and/or any other related material specifically created for AMC Program) and potentially dealing with the RSPL on the prescribed standards to be maintained under the AMC Program. The servicing, repair and maintenance to the customers at the workshop/ service centre under the AMC Program is to be independently being managed, operated and undertaken by each Authorised Dealer(s)/ ASC's and in no eventuality can the Authorised Dealer(s)/ASC's shall suggest or represent to the general public or the customers etc. that the AMC Program and/or the maintenance services/ facility are being provided or extended by HMC or RSPL. In the event of any dispute/ claim, the Authorised Dealer/ASC shall solely be held responsible/liable to rectify/ resolve the same to the complete satisfaction of the customers.

2.3. For purposes herein, it is being clarified that the AMC Program is a beneficiary scheme which is provided for voluntary participation by the customers wherein the customer can choose to avail the services/maintenance facility from the Authorised Dealers/ASCs, subject to other terms and conditions as stated in the AMC package.

2.4. RSPL shall not be responsible for inter HMC authorised Dealers/ASC debit & credit payment settlement, for the services provided by one HMC authorised Dealers/ASC to the customer under joyride program, for joyride sold by another HMC authorised Dealers/ASC. RSPL responsibility is limited to provide Db and Cr Note through Joyride application. Which HMC Authorise Dealer/ASC can download through application. Settlement of financial transaction is the responsibility of individual HMC Authorized Dealer/ASC.

**2.5.** This Agreement does not confer any exclusivity of arrangement between the RSPL and the Authorised Dealers/ASC's. Accordingly, any other entity or business partner can be designated/engaged for the management of the AMC Program with approval and consent from HMC.

**2.6.** The role of the RSPL in this Agreement is co-terminus with the arrangement between HMC & RSPL. In case the RSPL exits from the arrangement with HMC, then the Authorised Dealers/ASCs would be serviced through such other entity designated by HMC itself.

### **3. PROCESS FLOW:**

The Parties agree and understand that the Scope of work as well as other related marketing operation support related to Joyride program as required by the Authorised Dealers/ ASC shall be provided by the RSPL subject to the terms of the process flow (as more specifically set forth under **Annexure II**)

### **4. TERM OF THE AGREEMENT:**

**4.1.** This Agreement shall commence from  (the "**Effective Date**"), and shall remain effective and binding between the Parties unless otherwise terminated as per the provisions of clause 12 herein.

### **5. COMMERCIAL TERMS:**

The Parties agree that the commercials for the provision of Services under this Agreement shall be as per the terms as set forth under **Annexure III** hereto.

RSPL will invoice to HMC authorised Dealer/ASC against the processing fee as per the terms set forth under Annexure –I. The payment shall be made to the Billing entity by HMC authorised Dealer/ASC.

### **6. TAXATION, DUTIES AND OTHER CHARGES:**

Each Party shall be responsible for, and shall pay, all taxes, levies, duties, assessments and deductions of every nature required by law in connection with the Services and/or respective obligations under this Agreement.

### **7. CONFIDENTIAL INFORMATION:**

**7.1.** While providing the Services under this Agreement, each party may have access to confidential or proprietary information of the other, its business, its customers including information pertaining or relating to the operations and management etc..

**7.2.** “Confidential Information” may include but is not limited to

- (i) proprietary and confidential matters concerning each party’s security arrangements, financial information, technical data and any information relating to pricing, methods, processes, lists, research, development;
- (ii) information from time to time in the possession or custody of a party belonging to its Customers or other users of a party’s services or products from time to time, including, without limitation, the names of customers and the nature of their accounts; and
- (iii) information from time to time in the possession or custody of a party belonging to its vendors or other service providers of a party.

Each Party agrees that it shall not, without the prior written consent of the other, disclose any such information to any third party, either orally or in writing, unless such disclosure is mandated by applicable law.

**7.3.** All documents and things of belonging to a party, including, without limitation, details of customers/ service claims etc., shall belong to that party absolutely and deemed part of Confidential Information, and the other Party shall, while the same is in its possession, if at all, hold it in trust for the Party (to whom it belongs) and shall deliver the same forthwith upon request.

**7.4.** Each Party acknowledges the proprietary and sensitive nature of the Confidential Information, and the importance of maintaining the secrecy and confidentiality of the Confidential Information and shall make available such Confidential Information to its persons/ personnel strictly on a ‘need to know basis’, and binding them to strict confidentiality and non-disclosure requirements

**7.5.** Exceptions- The provisions of this clause shall not apply to:

- (i) Disclosure of information that is or becomes generally available to the public other than as a result of disclosure by or at the direction of a Party or any of its representatives in violation of this Agreement;
- (ii) Disclosure by a Party to its representatives and affiliates (and their officers and directors) provided such representatives and affiliates are bound by similar confidentiality obligations;
- (iii) Disclosure, to the extent required pursuant to a judicial or regulatory process or in connection with any judicial process regarding any legal action, suit or proceeding arising out of or relating to this Agreement.

## 8. REPRESENTATIONS AND WARRANTIES:

**8.1.** The RSPL hereby undertakes, represents, and warrants that:-

- a. The AMC Programme shall be executed, and provided by the Agency, in accordance with the arrangement approved by HMC and accordingly timely co-ordinate and extend all necessary support as required by the Authorised Dealer/ ASC.
- b. RSPL shall at all times follow the process flow as envisaged under **Annexure II** in order to interact with the Authorised Dealer/ ASP;
- c. RSPL is fully aware of the Authorised Dealer/ASC's responsibility and obligations to its customers and therefore in case of any clarification/ concern on the basis of feedback received from the customers, the RSPL will duly provide necessary support and assistance as may be required by the Agency related to logs/data of Joyride services consumed which comes under AMC and amount paid. But not regarding the quality of services/sale/sale of parts or any other services provided by Dealers/ASC
- d. In case of any concern and/or issue, related to scope defined in annexure-1 for RSPL, the Authorised Dealer/ ASC may intimate or communicate to the RSPL vis-a-vis the initiation or continuation of the AMC Program, the RSPL shall be responsible to duly resolve/ rectify the same.

**8.2.** The Authorised Dealer/ASC hereby undertakes, represents, and warrants that:-

- a. It shall be responsible to offer and introduce the AMC Program to the customers of HMC and undertakes to clearly inform the customers that the AMC Program is being offered/ undertaken exclusively by the Authorised Dealer/ ASC;
- b. It will not make any misrepresentation or false commitment as to the process and/or facility being derived from the scheme of AMC Program.
- c. It will provide regular updates to the RSPL with regards the details/information for the AMC Program sold and/or availed by the customers.
- d. In case of any concern/ issue as may be raised by the customers or otherwise brought to the knowledge of the Authorised Dealer/ ASC related to AMC program and under the scope defined in Scope-I, the same shall be

flagged and informed to the RSPL in order to resolve and rectify the same on an immediate basis.

- e. To follow at all times the process flow as envisaged under **Annexure II** in order to interact/ co- ordinate with the Agency.

## **9. STATUTORY COMPLIANCES:**

- 9.1.** Each Party shall be responsible for complying with all statutory obligations on its part in respect of proper observance of provisions of legislations applicable to such Party and which form part of the obligations/ duties as envisaged under this Agreement.

## **10. INTELLECTUAL PROPERTY RIGHTS**

Each Party agrees that the brand/logo, trademark, and/or any other related material etc., belong to a Party and delivered pursuant to this Agreement are the exclusive property of that Party and cannot in any circumstances be used, or copied, or altered in any manner which is identical/ similar to the brand/logo/trademark of a Party without being specifically authorized in writing by that Party.

Without prejudice to the aforesaid, in no event either Party shall be entitled to display or utilize the intellectual property rights (including logos, trade mark and/or brand name etc.) of HMC in any manner that may adversely affect or cause infringement of the intellectual property rights of HMC.

## **11. INDEMNIFICATION:**

- 11.1.** Each Party ("Defaulting Party") shall keep the other Party (Non-Defaulting Party) indemnified at all times from any loss/damage/liability which may be suffered/ incurred by such Non – Defaulting Party on account of breach of terms of this Agreement by the Defaulting Party, or its employees, agents or any other representative etc., including but not limited to any negligence, misconduct, omissions, false representations by such Defaulting Party during the performance of Services/ obligations under this Agreement .
- 11.2.** Notwithstanding anything herein to the contrary, this Section shall survive the termination/expiration of this Agreement.

## **12. TERMINATION:**

**12.1.** Unless, the Term of this Agreement is extended, this Agreement shall automatically stand terminated on the following events:-

- a. If in case the arrangement for creation and development of AMC Material between the RSPL and HMC is terminated or otherwise cancelled by HMC for whatsoever reasons (including for any breach/ default or non-performance on part of the Agency).
- b. If the Authorised Dealer/ ASC is removed/ terminated or otherwise not operational as per the standards prescribed by HMC.

In case of termination, it is require to have 2 month notice from either side. RSPL will not take back any unconsumed material and will not reimburse the cost of any material same is applicable for material in transit/in production

**12.2.** Notwithstanding the aforesaid, this Agreement shall get terminated by way of simple notice in the event either Party fails (a) to conform/ adhere to the terms and conditions of this Agreement (including failure to comply with the Process Flow as described under Annexure II), (b) breach/ violation by a party of its representations, warranties and/or undertakings contained in this Agreement.

**12.3.** Upon the expiration or termination of this Agreement for any reason:

- i. Each Party shall promptly return or destroy all Confidential Information (if any) in its possession or control, and shall destroy or, if applicable, erase any remaining copies of all such Confidential Information, including any electronically stored copies. An authorized person of the Party shall certify in writing to such return and/or destruction and that no copies of the Confidential Information have been retained; and
- ii. Any dues or adjustment pending by or to the RSPL shall be duly settled subject to the compliance with the applicable deductions on account of taxes, penalties as agreed under this Agreement.

### **13. EXCUSABLE DELAYS (FORCE MAJEURE):**

Neither Party hereto shall be responsible for delays or failures in performance resulting from acts beyond its reasonable control and without its fault or negligence. Such excusable delays or failures may be caused by, among other things, riots, rebellions, accidental explosions, floods, storms, acts of God and similar occurrences. It is hereby clarified that strikes or lock-outs or other agitations by Agency's Persons shall not be considered causes for excusable delays under this Agreement. The party claiming such *force majeure* condition shall notify the other party as promptly as practicable after it becomes aware of the occurrence of such *force majeure* condition. If there is any such delay, then the periods for the completion of the parties' obligations hereunder shall be automatically extended by the period of such delay. Notwithstanding the provisions hereof, in every case, the party claiming excusable delay shall exercise all reasonable efforts to mitigate the extent and the effect of such delay or failure. The RSPL shall on a best efforts basis, ensure that the Services are not disrupted in the event of the foregoing and hereby represents and warrants to the Authorised Dealer/ASP that the RSPL has necessary alternative and disaster management plans and other requisite procedures and systems in place under the Agency's continuity of business plans.

### **14. INDEPENDENT ENTITY:**

The RSPL shall provide Services as an independent service provider, on a non-exclusive basis. Nothing contained in this Agreement or otherwise shall be deemed to create any partnership, joint venture, employment, or relationship of principal and agent, or master and servant between the Parties hereto or any of their respective employees, affiliates, subsidiaries.

### **15. NOTICES:**

No formal communication for the purposes of this Agreement shall be given verbally. Any notice or formal communication to be given under and for the purposes of this Agreement shall be in writing and signed by or on behalf of the party giving it. It shall be (a) sent by facsimile transmission to the number as specified from time to time; or (b) delivered by hand or sent by registered post acknowledgement due, to the aforesaid address (or as specified from time to time). In each case it shall be marked for the attention of the relevant Person of the party addressed as otherwise notified from time to time and the notice shall only be delivered to the same person to whom it is addressed. Any notice given by hand delivery, facsimile or post shall be deemed to have been duly given: (a) if hand delivered, when delivered; (b) if sent by facsimile, 12 (twelve) hours after the time of dispatch; (c) if sent by registered post acknowledgement due, at 10 a.m. on the 3<sup>rd</sup> business day from the date of posting.

## **16. GOVERNING LAW AND JURISDICTION:**

**16.1.** This Agreement, the construction and enforcement of its terms, and the interpretation of the rights and duties of the parties hereto shall be subject to and governed by the laws of India.

**16.2.** The Parties hereby submit to the exclusive jurisdiction of the competent courts of New Delhi.

## **17. COMPLIANCE WITH LAWS:**

**17.1.** Each Party hereto agrees that it shall comply with all applicable local laws, ordinances and codes in performing its obligations hereunder.

## **18. SEVERABILITY:**

In the event any one or more of the provisions of this Agreement shall, for any reason, be held to be invalid, illegal or unenforceable, the remaining provisions of this Agreement shall be unaffected, and the invalid, illegal or unenforceable provision(s) shall be replaced by a mutually acceptable provision(s), which being valid, legal and enforceable, come(s) closest to the intention of the parties underlying the provision(s) held to be invalid, illegal or unenforceable.

## **19. MODIFICATION:**

No modification, amendment, supplement to or waiver of this Agreement or any of its provisions shall be binding upon the Parties hereto unless made in writing and duly signed by the Party against whom enforcement thereof is sought.

## **20. WAIVER:**

A failure or delay of a Party to this Agreement to enforce at any time any of the provisions of this Agreement or to exercise any option which is herein provided, or to require at any time performance of any of the provisions hereof, shall in no way be construed to be a waiver of such provisions of this Agreement.

## **21. ENTIRETY OF AGREEMENT AND INTERPRETATION:**

This Agreement together with all Appendices, Exhibits, Schedules, Annexures, Attachments and addendum attached hereto from time to time constitute the entire agreement between the parties and supersedes all and any previous agreements, promises, representations, understandings and negotiations, whether written or oral, between the Parties with respect to the subject matter hereof.

**-----Agreement Document Completed-----**

IN WITNESS WHEREOF, AUTHORIZED OFFICERS OF THE PARTIES HERETO  
HAVE DULY EXECUTED THIS AGREEMENT AS OF THE DATE FIRST ABOVE  
WRITTEN.

For RESULT SERVICES PVT. LTD.

For

**PUNIT KAPOOR**  
**Sr. Vice President &**  
**General Manager**

**Authorized Signatory**

Office Stamp

**WITNESSES:**

RSPL Witness :

1)

Dealer Witness :

2)

## **SPECIFICATION OF SERVICES ALONG WITH SERVICE LEVELS**

### **SPECIFICATION OF SERVICES:**

#### **Purpose**

The purpose of Joyride/AMC is to provide the regular service of Hero Two wheeler to end customer at reasonable price. Customer can get his Two Wheeler service at any of the Authorized Workshop of Hero. Its business name is decided as Joyride. Joyride will be available in 1,2 and 3 year membership. At present it has been decided to launch Hero Joyride as a one year membership option only

#### **Audience**

Hero Authorized Dealer/ASC/ARD will provide all services to end customers. Broadly, the role of RSPL is limited to dispatching of Kits, providing the inter-dealer Dr/Cr information, procurement of raw material for KIT, SMS push as per program and managing the program as per scope of work.

#### **Features and Functionality**

Joyride will be sold through Joyride Software application. To become the member, customer has to pay necessary fee and fill the profile application form in the Joyride Application. Customer will get membership card for Joyride program. Customer can buy Joyride membership any time as long as customer owns the Hero Two Wheeler. To maintain the regular sale of Joyride membership, Dealer/ASC/ARD has to maintain the sufficient amount of Joyride KIT. Joyride application will help the Dealer to maintain the minimum stock of Joyride KIT.

#### **Joyride Membership Fee**

There is program membership fee of Joyride program for the customer. Program fee is different for a different model and Tier Locations. Price of AMC will be control by Hero Central Team of Joyride. Dealer will charge the complete fee from customer through Joyride application, which at present varies from Rs 809 to 1148 + taxes per year depending upon model and Tier Town level of dealer. Customer will get Joyride KIT as identity of Membership. The amount collected by HMC Authorized Dealer from customers will remain with HMC Dealer's Account towards providing various service & benefits to the Joyride member. Dealer has to provide 4 services per year under one year membership and multiple of 4 in case of more than 1 year. This amount will

be utilized pro-rated as and when the customer avails the services under Hero Joyride Program (AMC) at their dealership or any other HMC dealerships for which dealer has to pay to the dealer who made the service as per the program guidelines.

HMC dealer has to pay a sum of Rs. 75+taxes to RSPL towards each Hero Joyride Program kit being ordered against the processing of Joyride membership, to facilitate the Backend Program Process. This sum has to be paid in advance to RSPL along with the applicable taxes at the time of placement of order.

Joyride application will generate the invoice against Joyride membership sale with Purchaser as customer and Seller as HMC authorised Dealer/ASC. Two copies of invoice will be generated. One for the customer and another for HMC authorise Dealer/ASC for his reference. Invoice will have the detail of Dealer like his Service Tax No/TIN No/PAN No etc.

In the case of Sale through ARD having no service tax number, application will use Dealer credential in the invoice. Joyride application will use ARD service tax number once ARD has his own Service tax number, till that he can generate only the receipt of payment. Money will remain with respective Dealer/ASC or ARD (having Service tax number) but for ARD having no service tax number, money will remain with parent dealer of ARD. It is responsibility of dealer to settle the account with ARD as per report generated by Joyride application.

### **Joyride Service Transactions:**

For all DMS enabled dealers/ASCs, Joyride transaction will be recorded in DMS server only. If member is eligible then Joyride benefits will be provided to member. DMS will generate zero value for Joyride regular service transaction using AMC type job card. For all non-DMS dealers/ASCs and ARDs, Joyride transaction will be recorded in the Joyride application. If Joyride transaction is happening at ARD, then it is the responsibility of ARD to do the Joyride transaction of same Two Wheeler for which it is given so that system will keep the track of Joyride Consumption. Joyride application will push SMS on every Joyride transaction with balance Joyride and consumed Joyride with last date of Joyride membership.

### **Joyride Processing Fee/Order Placement**

The orders placed should be in a multiple of 50 kits. After realization of payment RSPL will dispatch the KIT to Dealer as per the TAT defined. At present Kit processing cost decided is Rs 75/- + Service Tax. This amount is the processing charges of Joyride. The invoicing will happen immediately after dispatching the Kit to the Dealer. RSPL will not courier the invoice to Dealer. Dealer can download the soft copy through Joyride software at any time or from the email sent to dealer. RSPL/RSPL Associate will invoice to dealer for the processing charges at the rate of Rs 75/- with applicable service tax.

## **Loss of Consignment**

In case of loss of consignment dealer has to report within 30 days of dispatch and in case of short Supply/Damage, it should reach to RSPL within 48 hours of receipt of consignment.

## **Cross Dealer Joyride Transaction**

The customer has the option to get the services covered under the Hero Joyride program (AMC) from any of the authorized HMC dealers throughout India. In the event if a customer prefers to get the services from any other dealer than the one from whom he has purchased the Hero Joyride Program(AMC), the Hero Joyride Program (AMC) issuing HMC Dealer is liable to reimburse the charges to the HMC dealer who has provided the services to the customer. For such cases, the Joyride application will generate a debit note for the inter-dealer payments to be made.

Joyride application will provide the debit note with the HMC Dealers for all the payments they are liable to pay to other HMC Dealers of those customers who have availed the free service under the Hero Joyride Program at other dealership. Example:- If the Joyride cost is Rs 809+ Service Tax. Then the Dr/Cr amount will be  $\{809-75(\text{Processing Cost})\}/4 + \text{Taxes}$  Cost of reimbursement depend upon the cost of Joyride membership sold to Customer not depend upon dealer town who serviced the customer. Dealer can download the Db Note as soft copy through Hero Joyride Software for each dealer..

RSPL will play the role of central agency to coordinate among Dealers for Db/Cr inter dealer transactions. RSPL will only generate Db note with service tax for interdealer transactions. It is the responsibility of individual dealer to pay their parts to the respective dealers as per Db Note generated from Joyrode application. Debit/ Credit between Dealer & ARD (Having no Service tax Number) would be monthly. It is the responsibility of Dealer and ARD to settle their account monthly themselves. ARD money will remain with ARD in cases he has service tax. But at the time of termination or realignment of ARD, ARD has to return complete balanced money as per Dr/Cr back to dealer attached. There are possibilities that dealer will get many Db note every month through the Joyride application according to the number of his customer going to other dealerships.

## **Cross Db/Cr under Joyride Service between Dealer and ARD**

ARD is allowed to service any vehicle under Joyride after validating through Joyride application. In case customer belongs to ARD having service tax, then that ARD will be treated like dealer. In case customer belongs to ARD having no service tax then in

that case application will not generate any invoice to Dealer of ARD. There is no Dr/Cr between dealer and ARD as money is with dealer only.

## **SERVICES AND SERVICE LEVELS:**

- RSPL will be dispatch the Kit on the 6<sup>th</sup> working day after realizing the advance payments in RSPL/RSPL Associate bank account paid by the Dealer/ASC/ARD.
- All Db note shall be generated by application on monthly basis towards service provided by HMC authorised Dealers/ASC other than HMC authorised Dealers/ASC who sold the card as per predefined rate. This will be in form of a soft copy which the HMC Dealer can get through Hero Joyride Software
- RSPL shall not be responsible for inter HMC authorised Dealers/ASC debit & credit payment settlement, for the services provided by one HMC authorised Dealers/ASC to the customer under joyride program to whom joyride was sold by another HMC authorised Dealers/ASC.
- Payment shall be made by HMC authorised Dealers/ASC through RTGS/DD/Cheque to another HMC authorised Dealers/ASC within 15 days of receipt of debit note for balance amount.
- Dealers are required to share TDS certificates on a quarterly basis with RSPL against the orders as per applicability
- HMC dealer will be responsible to provide the services/features specified in the Hero Joyride Program to the Joyride members. These features can be change/withdrawn any time and HMC dealers are liable to abide to follow the changes
- Quality of service is the responsibility of HMC Dealers who is providing the service.
- HMC dealer needs to abide by the Terms and Conditions as mentioned in the Joyride Program booklet.
- HMC Dealer can check the validity of Hero Joyride Program (AMC) through Joyride application or through Hero Connect application. In case of any dispute as such, RSPL decision in coordination with HMC is final.
- In case if it shall be established, following the receipt of Hero Joyride Program (AMC) transaction that the conditions as laid down in Hero Joyride Program (AMC), have not been fully complied with by HMC Dealer, then it is hereby expressly agreed and declared that RSPL shall not be liable for any such default in terms of cost and quality for that particular transaction.
- The HMC Dealer will be solely responsible towards any kind of misuse of the Hero Joyride Program (AMC) facilities extended to the customer. RSPL shall reject all such claims/transactions from the HMC Dealer towards false or

fraudulent services as may be claimed by HMC dealer during the service period under Hero Joyride Program (AMC).

- RSPL will not be liable for any accounting, taxation, statutory obligation and/or submission and its compliance which may arise during the running of Hero Joyride Program (AMC) at any given point of time. It will be the sole responsibility of the individual HMC dealers.
- At no point of time, RSPL is responsible to provide the Hero Joyride benefits to the customer directly.
- In the case of inter-dealer payments, RSPL will not mediate any kind of a role for HMC Dealers which are not registered under the Hero Joyride Program.
- RSPL will not be held responsible for any damage/claim related to services, any monetary transaction during the Hero Joyride Program period at any HMC dealership. All deliverance and service quality standards is the sole responsibility of HMC & its dealership providing the Hero Joyride Program (AMC).
- RSPL reserves the right to cancel/terminate any Joyride Program registration, order request if it finds any relevant or required details missing or not furnished by the HMC dealership at the time of program enrollment/registration.
- If a customer has enrolled in Hero Joyride Program with Dealer A who is based in Tier 2 location, and has gone to take service from a HMC Dealer B who is based in Tier 1 location, the payment made by Dealer A to Dealer B will only be on tier-basis as per the program guidelines.
- In case if a HMC dealer closes its business association with HMC, the HMC dealer is liable to pay all unused Hero Joyride Program (AMC) services funds to HMC. HMC Dealer shall settle the account as per the T&C of Hero with dealer. The role of RSPL is to share the detailed liability reports of unused Joyride services and share it with HMC and HMC Dealer (Unused Joyride Services-These are services of the joyride program not utilized by the customer)

### **PERFORMANCE PARAMETERS**

- Dispatch kits to HMC dealers with 6 working days after realizing the payment.
- Generation of invoice of kits processed according to the dispatch quantity with 10 days of dispatch of KIT Monthly generation of debit note for the dealers for the cross transaction on 5<sup>th</sup> of every month.

Document Completed

## **ANNEXURE - II**

The payments of Joyride kits will have to be made in advance by the dealerships and the details about the payments will have to be entered by the dealer on the application.

The orders will be in a quantity of a multiple of 50 only.

The advance payments for the kits will have to be made to the following account details:

|                                |                                        |
|--------------------------------|----------------------------------------|
| <b>Account Holder*</b>         | <b>Result Services Private Limited</b> |
| <b>Name of Bank</b>            | <b>CITIBANK N.A.</b>                   |
| <b>Branch of Bank</b>          | <b>Jeevan Bharti Building</b>          |
| <b>Street</b>                  | <b>124, Connaught Circus,</b>          |
| <b>City of Bank</b>            | <b>New Delhi, India</b>                |
| <b>Account No*</b>             | <b>16593001</b>                        |
| <b>IFSC code*</b>              | <b>CITI0000002</b>                     |
| <b>Swift code ( 10 Digits)</b> | <b>CITIINBX</b>                        |

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Please fill the following details about your dealership:

|                                                                               |   |
|-------------------------------------------------------------------------------|---|
| <b>Dealer Code</b>                                                            | — |
| <b>Dealer/Client Name</b>                                                     | — |
| <b>Office Address</b>                                                         | — |
| <b>Address of Finance deptt<br/>(if located other than above<br/>address)</b> | — |
|                                                                               |   |
| <b>Account Holder* (Dealer/ASC<br/>bank account)</b>                          | — |
| <b>Name of Bank</b>                                                           | — |
| <b>Branch of Bank</b>                                                         | — |
| <b>Street/Locality</b>                                                        | — |
| <b>City of Bank</b>                                                           | — |
| <b>Account No*</b>                                                            | — |
| <b>IFSC code*</b>                                                             | — |
|                                                                               |   |
| <b>Contact person for Hero<br/>Joyride</b>                                    | — |
| <b>Designation</b>                                                            | — |
| <b>Tel#</b>                                                                   | — |
| <b>Cel#</b>                                                                   | — |
| <b>email</b>                                                                  | — |
| <b>Contact person in Finance<br/>(Name)</b>                                   | — |
| <b>Designation</b>                                                            | — |
| <b>Tel#</b>                                                                   | — |
| <b>Cel#</b>                                                                   | — |
| <b>email</b>                                                                  | — |
|                                                                               |   |
| <b>Taxation Details</b>                                                       |   |
| <b>PAN No.*</b>                                                               | — |
| <b>TAN No*</b>                                                                | — |
| <b>Service Tax No</b>                                                         | — |
| <b>CST No. (if available)</b>                                                 | — |
| <b>VAT/TIN no.</b>                                                            | — |

**Also, make sure to submit 2 copies of the signed agreement along with the following scans:**

- 1. Copy of Service Tax Certificate**
- 2. Copy of PAN Card**
- 3. Copy of CST Certificate (if available)**

